

arisen; he could not, therefore, have intended the devisee to take the legacy, which is bequeathed under the very circumstances to the charity; the legacy therefore in this case, though in form a charge, is in fact an exception. On the other hand it may be argued that where the legacy is admitted to be a charge and not an exception, the devisee does not take the legacy *because the legacy was intended for him*, since then in the case of a *lapse* the charge would not have sunk for the benefit of the devisee; for in real estate, until the late Wills Act, that only went to the devisee which was not otherwise *expressed* to be disposed of whether the bequest took effect or not, as in the case above noticed of a trust for sale, where the lapse of a legacy out of the proceeds enured to the benefit of the heir, but, nevertheless, in a charge the devisee did take the legacy in case of a lapse, *from the form in which the legacy was given*; a result which shows the true view to be that the testator first constituted the devisee the *hæres factus* of the whole estate, which disinherited the heir, and then as the legacy was made a graft upon that estate, and the legacy failed, the estate was exonerated from the burden. Lord Alvanley was of opinion that this was the right ground, and that it mattered not in what way the failure of the legacy arose, whether \*by lapse, or the unlawful- [\*157] ness of the object: "It is now perfectly settled," said Lord Alvanley, "that if an estate is devised, charged with legacies, and the legacies fail, *no matter how*, the devisee shall have the benefit of it and take the estate" (a).

**Results of the cases.** — The cases upon the subject are very conflicting, but the best results that can be obtained from them appear to be these:

(I.) The first inquiry to be made is, whether upon the whole will the testator intended the legacy and the devise to be two distinct independent gifts, flowing directly from himself to the legatee and devisee, or whether he devised the whole estate in the first instance to the devisee to the disinherison of the heir, and then gave the legacy, not as an original gift from the testator to the legatee, but by way of graft upon

(a) *Kennell v. Abbott*, 4 Ves. 811; L. R. Eq. 521; *Dawson v. Small*, 18 [and see *Fisk v. Attorney-General*, 4 L. R. Eq. 114.]